

Ikram v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 January 2021 · WRIT - C No. - 24084 of 2020 · **Writ dismissed; petitioner relegated to Regulation 6.5.**

HEADNOTE

A writ challenging a Tehsildar's recovery of electricity dues is not maintainable where the consumer has an alternative efficacious remedy under Regulation 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, which the petitioner does not controvert. The petition is dismissed on that ground.

FACTUAL SUMMARY

The petitioner, Ikram, filed a writ petition in the Allahabad High Court challenging a Tehsildar notice dated 23 December 2019 from Tehsil Khair, District Aligarh, and consequential recovery of Rs. 1,26,933 as electricity dues. The State appeared through the Standing Counsel. Counsel for the distribution licensee (respondents 4 and 5) submitted that the petitioner had an alternative efficacious remedy under Regulation 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The petitioner's counsel was unable to controvert that plea.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy for disputed electricity dues

HOLDING

A writ petition challenging a Tehsildar notice and recovery of electricity dues is dismissed where the petitioner has an alternative efficacious remedy under Regulation 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, and is unable to controvert that plea. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy

The Division Bench dismissed the writ against Tehsildar recovery of Rs. 1,26,933 electricity dues because Regulation 6.5 afforded an alternative efficacious remedy, which the petitioner could not controvert. ¶ 1

clause-6.5-statutory-remedy

Counsel for the licensee invoked Regulation 6.5 of the 2005 Supply Code as the statutory forum for the petitioner's grievance against the electricity dues; the Court accepted that uncontroverted plea and refused writ interference. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS. 1,26,933 ELECTRICITY DUES AND THE TEHSILDAR RECOVERY NOTICE

The writ was dismissed solely on alternative remedy; the Court did not examine the demand or the notice dated 23.12.2019 on merits. ¶ 1